

GOVERNMENT OF INDIA
MINISTRY OF COMMERCE & INDUSTRY
CONTROLLER GENERAL OF PATENTS, DESIGNS & TRADE MARKS

THE BIOLOGICAL DIVERSITY ACT, 2002

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(18 of 2003)

[As amended by the Biological Diversity (Amendment) Act, 2023]

ARRANGEMENT OF SECTIONS

CHAPTER I: PRELIMINARY

Section 1: Short title, extent and commencement

Section 2: Definitions

In this Act, unless the context otherwise requires:

- (a) "biological diversity" means the variability among living organisms from all sources and the ecological complexes of which they are part
- (b) "biological resources" means plants, animals and micro-organisms or parts thereof, their genetic material and by-products (excluding value added products)
- (c) "commercial utilization" means end uses of biological resources for commercial utilization such as drugs, industrial enzymes, food flavours, fragrance, cosmetics, emulsifiers, oleoresins, colours, extracts and genes used for improving crops and livestock through genetic intervention

CHAPTER II: REGULATION OF ACCESS TO BIOLOGICAL DIVERSITY

Section 3: Certain persons not to undertake biodiversity related activities without approval of National Biodiversity Authority

Section 4: Results of research not to be transferred to certain persons without approval

Section 5: Application for intellectual property rights not to be made without approval of National Biodiversity Authority

Section 6: Prior intimation to State Biodiversity Board for obtaining biological resource for certain purposes

CHAPTER III: NATIONAL BIODIVERSITY AUTHORITY

Section 8: Establishment of National Biodiversity Authority

Section 9: Composition of National Biodiversity Authority

Section 18: Functions and powers of National Biodiversity Authority

- (a) Regulate access to biological resources
- (b) Advise Central Government on conservation of biodiversity
- (c) Advise State Governments on selection of biodiversity heritage sites

CHAPTER IV: STATE BIODIVERSITY BOARDS

Section 22: Establishment of State Biodiversity Boards

Section 23: Functions of State Biodiversity Boards

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CHAPTER XII: PENALTIES

Section 55: Penalties

Whoever contravenes any of the provisions of this Act shall be punishable with imprisonment for a term which may extend to five years, or with fine which may extend to ten lakh rupees, or with both.